

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL
FILING OR CYBERSECURITY GUIDE**

Sealed Highlighted Response Brief of DOE

Filed: April 13, 2026 **Synthetic docket:** SYN-CA4-26-CV-4106 **Controlled status:** Fictional semantic-placement counterpart; no authentic operational information

Agency Position

DOE defends the district court's judgment on the exemption and segregability issues. Its fictional declarations describe protective functions represented here only by inert words. According to DOE, the remaining placements reveal decision-tree organization, individual-connected safety relations, or context that cannot be disclosed separately without exposing a protected relation.

The controlled text is not a technical supplement. Condition-Aster, Sequence-Beryl, Value-Cinder, Role-Dovetail, Safety-Echo, and Channel-Fable carry no authentic meaning. They show where a type of field occurs so the panel can compare DOE's functional account with Open Grid's objections. Nothing here identifies a real system, person, route, value, or action.

DOE asks for affirmance, while recognizing that judicial-record access remains analytically separate. If the Court concludes that a safety category, segregation statement, or district sealing finding requires more detail, DOE seeks a bounded remand rather than an immediate disclosure command. Any such disposition should leave intact the decision-tree relationships adequately sustained under 7(E).

Governing Review Principles

The January 2 final judgment supports jurisdiction under 28 U.S.C. § 1291. On de novo review of the FOIA questions, the Court considers whether the agency carried its burden through reasonably detailed, logically coherent declarations and supporting indexes.

Functional explanation is essential in a case where public repetition of the concealed relationship could defeat the asserted exemption. The agency is not excused from specificity, but it may state what a field does and what consequence disclosure would have without identifying the underlying content. The controlled positions let the Court test whether that account corresponds to the record.

Segregability and foreseeable harm are independent obligations within the FOIA inquiry. Court-record restriction proceeds under another body of law, including *Company Doe v. Public Citizen*. DOE does not contend that the agency's ability to withhold a source record makes every litigation document inaccessible. It asks the Court to evaluate each question under its own standard and to preserve only those interim restrictions needed for four identified controlled counterparts.

Administrative Sequence and Quantities

DOE-FOIA-2024-OG-041, ACK-OG-0610, and CLR-OG-0621 define the request and its narrowing. Authentic incident matter, configuration data, credentials, personal contacts, routine messages, and drafts were excluded. The initial administrative disposition ran through RLS-OG-001, DOE-APR-2024-OG-017, and FAD-OG-1007 before litigation.

The search certification SRCH-OG-2025-0804 reports 16,842 raw hits, 1,284 deduplicated candidates, forty-six custodian-reviewed files, and twelve responsive records with 200 pages. Sixty pages belong to decision trees, fifty-four to escalation matrices, sixty-four to coordination appendices, and twenty-two to governance instruments.

DOE fully withheld three records totaling fifty-four pages, partly produced seven records totaling 124 pages, and completely released two records totaling twenty-two pages. It produced 146 images: sixty-eight without blackout and seventy-eight redacted. The cited totals are sixty-two redacted images under 7(E), fifty-one under 7(F), and thirty-five under both. Every fully withheld page invokes 7(E); thirty-nine of those pages also invoke 7(F).

Relationship to Law Enforcement

The fictional records were compiled to support prevention, recognition, and coordination concerning unlawful attacks. Open Grid accepts that this purpose satisfies Exemption 7's threshold. The operative disagreement concerns the reach of the two subparts and whether useful text remains separable.

DOE relies on more than the title of the collection. Its declarations assign functions to the positions shown by the inert labels and explain why relationships among them form a protective framework. The released governance instruments demonstrate that the agency did not classify every Grid Sentinel document as operational. Within mixed records, it also exposed administration that reviewers found safe to separate.

Because the records work together, context can matter across a single page or a repeated family structure. A fragment that appears ordinary in isolation can identify whether Condition-Aster precedes Sequence-Beryl or where Value-Cinder enters the framework. DOE submits that its remaining redactions reflect this contextual inquiry, not an impermissible subject-matter exemption.

Application of Seven(E)

Condition-Aster marks a triggering location; Sequence-Beryl marks an ordered-response location; Value-Cinder marks an escalation location. Their literal words are invented, but their placements correspond to the abstract functions discussed in DOE's declarations. The agency predicts that disclosure of the underlying relation and implementation context would make a nonpublic protective process more predictable.

That is the information 7(E) protects as a technique, procedure, or qualifying guideline carrying a circumvention risk. *Grey v. Alfonso-Royals* protects nonpublic implementation detail, while *Zaid v. Department of Justice* permits functional categories founded on document-by-document review. Neither compels exposure of the internal relation as the price of judicial review.

Open Grid concedes that some decision-tree passages satisfy the exemption. DOE submits that the same reasoning covers retained contextual fragments when those fragments would reveal the role or order of a concealed field. The panel can inspect the placement without learning any real value and can credit the agency's reasoned explanation of what an additional disclosure would show.

Structural Context Is Information

The appellant divides protected fields from surrounding captions as though each could be judged alone. DOE's review found certain cases in which releasing a heading, relationship word, or administrative phrase would identify the function of a concealed position. A reader could then derive structural information even though the actual value remained hidden.

Grey and PEER v. United States Section, International Boundary and Water Commission support analysis of what disclosure would communicate in the 7(E) context. DOE does not claim that every caption or edition note is exempt. Its complete release of governance instruments and its supplemental restoration of passages establish the contrary.

For the current set, the agency has stated that separation would expose the protected relation or leave a fragment devoid of useful meaning. The controlled copy allows the panel to verify that the disputed language sits within the described structure. Requiring an even more exact public explanation could itself reveal whether Condition-Aster, Sequence-Beryl, or Value-Cinder performs the decisive function at that point.

Harm Analysis

DOE applied § 552(a)(8)(A) by identifying the interest associated with each exemption and considering the consequence of release. For decision-tree relationships, the predicted injury is exposure of how the fictional protective method organizes conditions, ordered responses, and escalation. The agency states that the resulting predictability could facilitate circumvention.

For individual-connected placements, the predicted injury is increased exposure of a duty or coordination relationship bearing on physical safety. Role-Dovetail, Safety-Echo, and Channel-Fable are substitutes that reveal none of those facts. The declarations describe the connection without naming a person or channel.

Open Grid's argument isolates sentences from those described functions. DOE submits that foreseeable harm properly considers what the fragment would communicate when combined with already released context. The agency released matter where no protected inference remained and withheld it where the relation persisted. That is a reasoned harm judgment, not a recital of statutory language. The Court should uphold it absent contradictory record evidence.

Vaughn Correlation and Detail

Each Vaughn entry correlates a responsive record with its family, disposition, relevant field type, exemption, and predicted consequence. The controlled copy supplies a second correlation: it shows where the inert field representation sits without publishing an authentic value. This combined presentation permits the panel to test whether DOE's explanation fits the disputed passage.

Rein v. United States Patent and Trademark Office demands a reviewable justification, but it does not require a public map of the protected structure. Here, the primary index gives the stable record universe and disposition. The supplemental entries document passage-level reconsideration. The declarations explain how Condition-Aster, Sequence-Beryl, Value-Cinder, Role-Dovetail, Safety-Echo, or Channel-Fable functions in each retained category.

The use of recurring prose reflects recurring protective functions. It does not mean the agency ignored context. Where context differed materially, reviewers released governance pages, left images unredacted, or restored additional passages. DOE maintains that the remaining entries give enough detail to distinguish operational relationships from ordinary administration while avoiding disclosure through description.

Representative Categories Are Appropriate

The decision-tree, escalation, and coordination families repeat structural functions. DOE grouped passages only after reviewers determined that disclosure would produce the same protected inference or safety consequence. Categories allow consistent treatment while avoiding a public sequence of clues that could reconstruct the relation.

The controlled positions confirm common function but also retain document context. A panel member can see whether Role-Dovetail appears within an operational assignment, whether Safety-Echo marks a protected dependency, or whether Channel-Fable supplies a coordination relation. The words themselves remain harmless.

DOE agrees that a category cannot protect an instance that lacks its defining characteristic. It contends that the declarations state that characteristic and that current membership follows the supplemental review. If the Court identifies an entry where the connection is unclear, it may request a targeted clarification. That localized remedy is preferable to rejecting categories that accurately organize the bulk of a repeated fictional framework.

Seven(F) and Individual Safety

Role-Dovetail, Safety-Echo, and Channel-Fable occupy positions the agency associated with persons performing protective work or with dependencies affecting their exposure. DOE's declarations do not reveal a name, assignment, or communication path. They explain that disclosure of the underlying relationship could reasonably be expected to endanger an individual.

Exemption 7(F) does not require the agency to identify the endangered person in a public filing. *EPIC v. Department of Homeland Security* permits a sufficiently concrete nonidentifying account that protects the information while allowing judicial review. DOE provided such an account for the retained categories, including the thirty-nine fully withheld pages where 7(F) accompanies 7(E).

The inert labels are not evidence of danger by themselves. They enable the panel to confirm the kind and placement of the field to which the declarations refer. DOE's claim depends on the described person-connected function. Because a more specific public account could reveal that connection, the Court should assess the explanation with the controlled correlation rather than demand the omitted identity.

Scope of the Safety Claim

DOE does not contend that every occurrence of a role, reference, or channel must be withheld. An ordinary publishing owner or general governance citation would fall outside the asserted 7(F) rationale. The agency released the governance instruments and additional administrative passages for that reason.

The remaining Role-Dovetail placements concern protective assignments; the retained Safety-Echo positions describe individual-connected dependencies; and the retained Channel-Fable positions participate in coordination relationships the declarants found safety-sensitive. These descriptions are intentionally general but convey why release matters.

Open Grid offers alternative benign uses of the same label types. Those hypotheticals do not contradict the declarations about the actual fictional placements before the Court. If a specific entry is found too general, DOE requests remand to sharpen it. A direct disclosure ruling would be inappropriate because the same passage may also remain independently protected under 7(E), and because further public description could defeat the 7(F) interest under review.

Segregability Determination

The agency's declarations state that reviewers assessed each responsive record and released meaningful nonexempt information. The outcomes bear that out: two records were complete releases, seven were partial, sixty-eight produced images contained no blackout, and ordinary governance and narrative text remained visible throughout the public samples.

For each continuing deletion, DOE found either that the material was exempt or that the residual fragment would reveal a protected relationship or convey no useful information. The controlled placement lets the Court assess that conclusion without exposure of a real value. FOIA's segregability sentence requires reasonable separation, not publication of disconnected words that disclose context while adding no comprehensible substance.

Open Grid points to the supplemental release. DOE agrees that it is important evidence: the reviewers revisited all disputed passages, restored seventeen that could safely stand, and maintained the others. That process supports the updated segregation judgment. The Court should not infer from a documented correction that the corrected boundaries are necessarily defective.

Meaning of RLS-OG-002

RLS-OG-002 produced no new record and changed no source-page count. It replaced eleven previously produced pages, restoring seventeen passages. Six replacement pages contain two additional passages and five contain one. The reviewers determined that those segments did not reveal Condition-Aster, Sequence-Beryl, Value-Cinder, Role-Dovetail, Safety-Echo, Channel-Fable, or a protected relation among them.

The release shows application of a smaller unit of analysis. It does not prove that another such unit exists in every remaining deletion. The updated declarations explain that the retained material was reconsidered under the same standard and still could not be released without exposing an exempt function or leaving an unintelligible remnant.

DOE invites the Court to evaluate that account rather than apply a presumption based on the fact of correction. Agencies should continue to disclose material identified through review. Treating every voluntary narrowing as fatal to the remaining claims would discourage the behavior FOIA seeks. At most, any unresolved inconsistency warrants a focused remand for an entry-specific explanation.

Access to the Judicial Filings

Four appellate counterparts carry controlled semantic placements: this response, the opening and reply briefs, and the joint appendix excerpts. Each has a public document of equal length covering the same page subjects. The controlled words have no operational meaning, but temporary restriction preserves the public-controlled comparison the appeal examines.

The arrangement does not conceal the docket, legal rules, arithmetic, or requested relief. It is limited by document, eligible viewer, exact resolved closure, and revocable session. It remains subject to review and does not claim that any external system implements the authored policy.

DOE agrees that *Company Doe v. Public Citizen* requires a judicial-record determination distinct from the agency's FOIA claim. If the lower court's broad sealing findings do not satisfy that standard, vacatur and remand can be confined to access. The district court may then consider redaction and public counterparts before imposing any renewed restriction. Meanwhile, the supported 7(E) relation should not be disclosed merely because the earlier sealing analysis was inadequate.

Requested Judgment

DOE asks the Court to affirm because the declarations, Vaughn entries, and controlled correlation establish the functional basis for the remaining 7(E) and 7(F) withholdings and the updated segregability result. The search and responsive universe are undisputed, and the supplemental release demonstrates a willingness to narrow rather than a categorical approach.

If the panel determines that an individual safety category or segregation explanation requires refinement, DOE requests a remand limited to that subject. The agency should be allowed to reconsider, supplement, or release material before any court orders production. Any remand must expressly preserve the trigger, ordering, escalation, and implementation relationships sustained under 7(E).

DOE does not oppose independent review of district-court sealing. A decision vacating overbroad restrictions may coexist with affirmance of agency withholding because the two doctrines govern different records and interests. The final disposition should maintain that boundary and avoid treating harmless labels as either genuine secrets or sufficient proof of an exemption.

Conclusion and Certification

The controlled placements correspond to functions described in the agency's evidence, yet they disclose no actual function. That design permits meaningful review without turning the case file into a source of operational guidance. DOE submits that the district court correctly upheld its current exemption and segregability decisions.

The Court should affirm. Alternatively, it should remand only any specifically deficient 7(F) or segregation category, forbid no lawful supplemental showing, and issue no disclosure direction that conflicts with the 7(E) protection established for operational decision-tree relationships. Any district-sealing remand should proceed separately under Company Doe.

Corin Pell certifies that this controlled response contains only the six approved inert labels and no real technical information. Its public redacted counterpart is available page-for-page. Service was made through the synthetic docket on Tamsin Roe and Leo Marr on April 13, 2026. Viewing remains governed by the interim, document-specific, revocable access boundary and confers no continuing entitlement.